

1 ENGROSSED SENATE
2 BILL NO. 1812

By: Reinhardt of the Senate

3 and

4 Hall of the House

5
6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 1210.508, as last amended by Section 10,
8 Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section
9 1210.508), which relates to the statewide system of
10 student assessments; requiring public school
11 districts that administer certain assessments to
12 students in certain grades to report certain results
13 in certain manner; allowing a public school district
14 without certain portal to electronically report
15 certain results to the State Department of Education;
16 directing the Department to make certain results
17 available using certain manner and method; updating
18 statutory language; providing an effective date; and
19 declaring an emergency.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508, as
22 last amended by Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp.
23 2025, Section 1210.508), is amended to read as follows:

24 Section 1210.508. A. 1. By no later than December 31, 2016,
the State Board of Education shall adopt a statewide system of
student assessments in compliance with the Elementary and Secondary
Education Act of 1965 (ESEA), as reauthorized and amended by P.L.
No. 114-95, also known as the Every Student Succeeds Act (ESSA).

1 2. The statewide student assessment system adopted by the Board
2 pursuant to this subsection shall be aligned with the Oklahoma
3 Academic Standards as adopted by the Board and which prepare
4 students for college and careers.

5 B. 1. The Board shall issue a request for proposals for the
6 selection of assessments to be administered to students in grades
7 three through twelve as a part of the statewide student assessment
8 system adopted by the Board pursuant to this section.

9 2. The Board shall adopt assessments from the selected
10 proposals that were submitted pursuant to paragraph 1 of this
11 subsection. The adopted assessments shall be administered by the
12 Board for a period that is in coordination with the six-year subject
13 area textbook adoption cycle unless the vendor does not fulfill the
14 terms of the contract or fails to comply with or violates the terms
15 of the contract. The Board shall administer the assessments
16 beginning with the 2017-2018 school year.

17 C. The statewide student assessment system adopted by the Board
18 pursuant to this section shall include assessments that:

19 1. Are aligned with the Oklahoma subject matter standards as
20 adopted by the Board;

21 2. Provide a measure of comparability among other states;

22 3. Yield both norm-referenced scores and criterion-referenced
23 scores;
24

1 4. Have a track record of statistical reliability and accuracy;
2 and

3 5. For assessments administered in high school, provide a
4 measure of future academic performance.

5 D. For the 2016-2017 school year, the Board shall administer
6 assessments in:

7 1. English Language Arts or reading and mathematics in grades
8 three through eight and at least once in high school, during the
9 grade span of nine through twelve;

10 2. Science not less than once during each grade span of three
11 through five, six through nine, and ten through twelve; and

12 3. United States History not less than once during the grade
13 span of nine through twelve.

14 E. 1. Beginning with the 2017-2018 school year, the statewide
15 student assessment system shall include assessments in:

16 a. English Language Arts and mathematics in grades three
17 through eight and at least once in high school, during
18 the grade span of nine through twelve,

19 b. science not less than once during each grade span of
20 three through five, six through nine, and ten through
21 twelve, and

22 c. United States History, with an emphasis on civics, not
23 less than once during the grade span of nine through
24 twelve.

1 2. Beginning with the 2017-2018 school year, the statewide
2 student assessment system may include:

3 a. assessments in reading, writing, and mathematics in
4 certain grades as determined by the Board, and

5 b. contingent upon the availability of funds, an
6 additional nationally recognized college- and career-
7 readiness assessment or assessments as recommended by
8 the State Department of Education, which will be
9 administered to students in high school at no cost to
10 the student.

11 F. 1. Beginning with students entering the ninth grade in the
12 2017-2018 school year, each student shall take the assessment or
13 assessments included in the statewide student assessment system
14 adopted by the Board pursuant to subsection A of this section in
15 order to graduate from a public high school with a standard diploma.
16 All students shall take the assessment or assessments prior to
17 graduation, unless otherwise exempt by law.

18 2. Beginning with students entering the ninth grade in the
19 2017-2018 school year, each student, in addition to taking the
20 assessment or assessments included in the statewide student
21 assessment system adopted by the Board pursuant to subsection A of
22 this section, shall meet any other high school graduation
23 requirements adopted by the Board pursuant to Section 5 of Enrolled
24 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma

1 Legislature in order to graduate from a public high school with a
2 standard diploma.

3 3. For students who start the ninth grade prior to or during
4 the 2016-2017 school year, school districts shall adopt a plan that
5 establishes the assessment or assessments those students are
6 required to take in order to graduate from a public high school with
7 a standard diploma. The plan may also include any or all of the
8 other high school graduation requirements adopted by the Board
9 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
10 Session of the 55th Oklahoma Legislature that those students will be
11 required to meet in order to graduate from a public high school with
12 a standard diploma.

13 4. The Board shall promulgate rules to ensure that students who
14 transfer into ~~an Oklahoma~~ a school district in this state from out-
15 of-state after the junior year of high school shall not be denied
16 the opportunity to be awarded a standard diploma due to differing
17 testing requirements.

18 G. In order to provide an indication of the levels of
19 competency attained by the student in a permanent record for
20 potential future employers and institutions of higher education,
21 school districts shall report on the high school transcript of the
22 student the highest-achieved score on the assessment or assessments
23 included in the statewide student assessment system adopted by the
24

1 Board pursuant to subsection A of this section and any business- and
2 industry-recognized endorsements attained.

3 H. Students who do not perform at a proficiency level on
4 assessments shall be remediated as established in the assessment
5 requirements adopted by the Board pursuant to Section 5 of Enrolled
6 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
7 Legislature, subject to the availability of funding.

8 I. 1. All assessments required by this section shall measure
9 academic competencies in correlation with the subject matter
10 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
11 103.6a of this title and referred to as the Oklahoma Academic
12 Standards. The State Board of Education shall evaluate the subject
13 matter standards to ensure the competencies reflect high standards,
14 are specific, well-defined, measurable, and challenging, and will
15 prepare elementary students for next-grade-level course work and
16 secondary students for postsecondary studies at institutions of
17 higher education or technology center schools without the need for
18 remediation. All subject matter standards shall reflect the goals
19 as set forth in Section 11-103.6 of this title and of improving the
20 state average of college entrance exam scores.

21 2. The State Department of Education shall annually evaluate
22 the results of the assessments. The State Board of Education shall
23 ensure that preliminary results for all statewide assessments are
24 reported to districts no later than June 20 of each year and are

1 presented in a manner that yields detailed, diagnostic information
2 for the purpose of guiding instruction and student remediation. As
3 improvements are made to the assessments required by this section,
4 the Board shall seek to increase the depth of knowledge assessed for
5 each subject. The State Board of Education shall seek to ensure
6 that data yielded from the assessments required in this section are
7 utilized at the school district level to inform instruction,
8 professional development, school improvement, and remediation for
9 students.

10 3. The Commission for Educational Quality and Accountability
11 shall determine the cut scores for the performance levels on all
12 statewide assessments. The Commission shall conduct an ongoing
13 review to compare the statewide assessment content and performance
14 descriptors with those of other states. Upon receipt of the review,
15 the Commission may adjust the cut scores as necessary.

16 4. The State Board of Education, for the purposes of conducting
17 reliability and validity studies, monitoring contractor adherence to
18 professionally accepted testing standards, and providing
19 recommendations for testing program improvement, shall retain the
20 services of an established, independent agency or organization that
21 is nationally recognized for its technical expertise in educational
22 testing but is not engaged in the development of aptitude or
23 achievement tests for elementary or secondary level grades. These
24 national assessment experts shall annually conduct studies of the

1 reliability and validity of the statewide assessments administered
2 pursuant to this section. Validity studies shall include studies of
3 decision validity and concurrent validity.

4 J. 1. The State Board of Education shall promulgate rules
5 setting the assessment window dates for each statewide assessment so
6 that the assessments are administered according to recommended
7 testing protocols and so that the assessment results are reported
8 back to school districts in a timely manner. The vendor shall
9 provide a final electronic data file of all school site, school
10 district, and state results to the State Department of Education and
11 the Office of Educational Quality and Accountability prior to August
12 20 of each year. The Department shall forward the final data files
13 for each school district and each school site in that district to
14 the school district. The Board shall ensure the contract with the
15 vendor includes a provision that the vendor report assessment
16 results directly to the Office of Educational Quality and
17 Accountability at the same time ~~it is~~ they are reported to the
18 Board.

19 2. State, district, and site level results of all assessments
20 required in this section shall be disaggregated by gender, race,
21 ethnicity, disability status, migrant status, English proficiency,
22 and status as economically disadvantaged, except that such
23 disaggregation shall not be required in a case in which the number
24 of students in a category is insufficient to yield statistically

1 reliable information or the results would reveal personally
2 identifiable information about an individual student. Each school
3 site shall notify the student's parents or legal guardians of the
4 school's performance levels in the Oklahoma School Testing Program
5 as reported in the Oklahoma Educational Indicators Program at the
6 end of each school year.

7 K. The State Board of Education shall be responsible for the
8 field-testing and validation of the statewide assessment system
9 required in subsection A of this section.

10 L. The State Board of Education shall develop, administer, and
11 incorporate as a part of the Oklahoma School Testing Program other
12 assessment programs or procedures including appropriate
13 accommodations for the assessment of students with disabilities as
14 required by the Individuals with Disabilities Education Act (IDEA),
15 20 U.S.C., Section 1400 et seq.

16 M. For purposes of developing and administering alternate
17 assessments for students with the most significant cognitive
18 disabilities, the State Board of Education shall not be subject to
19 subsections D and E of Section 11-103.6a of this title.

20 N. 1. Beginning with the 2027-2028 school year, each public
21 school district that administers benchmark assessments to students
22 in grades kindergarten through eight shall report the results of
23 such assessments as provided for in paragraph 2 of this subsection.
24 For the purposes of this subsection, "benchmark assessment" means an

1 interim assessment that may be administered by a public school
2 district for the purposes of measuring student progress at a
3 frequency not less than the beginning, middle, and end of the school
4 year.

5 2. Each public school district shall make available to a parent
6 or legal guardian the results of his or her child's benchmark
7 assessment results via an online school district grading portal or
8 direct electronic or written communication. If a public school
9 district does not have an online grading portal, the district may
10 electronically report benchmark assessment results to the State
11 Department of Education in a manner and format prescribed by the
12 Department, and the Department shall make the results available to a
13 parent or legal guardian in the same manner and method the
14 Department provides for parents and legal guardians to access
15 results of statewide student assessments administered pursuant to
16 the provisions of this section, to the extent practicable and
17 consistent with state and federal student data privacy laws.

18 0. By December 15, 2026, and annually thereafter, the State
19 Board of Education shall electronically submit a report to the
20 Legislature containing data collected for the most recently
21 completed school year on the number and demographics of students who
22 were eligible for advanced mathematics courses, the number and
23 demographics of students who were placed in advanced mathematics
24 courses, the number and demographics of students placed in

1 mathematics intervention courses, and the number and demographics of
2 students not placed in advanced mathematic courses or mathematic
3 intervention courses. The report shall include information on the
4 type and format of advanced mathematic courses and the type and
5 format of mathematic intervention courses.

6 ~~Θ.~~ P. The State Board of Education shall provide guidance on
7 how to best develop programming and courses to ensure all impacted
8 students receive rigorous, academically appropriate instruction in
9 mathematics.

10 SECTION 2. This act shall become effective July 1, 2026.

11 SECTION 3. It being immediately necessary for the preservation
12 of the public peace, health, or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 Passed the Senate the 17th day of March, 2026.

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Presiding Officer of the Senate

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19 Passed the House of Representatives the ____ day of _____,
20 2026.

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Presiding Officer of the House
of Representatives

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